

Awadhraj v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 August 2014 · Criminal Misc. Writ Petition No. 13906 of 2014 · **FIR quash refused; arrest per CrPC 41/41-A; compounding via Supply Code 2005.**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Mere apprehension of arrest does not justify interference where arrest has not been made. If arrest is to be effectuated for an offence not entailing a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Awadhraj invoked the Allahabad High Court's criminal writ jurisdiction to quash an FIR dated 26 July 2014, registered as Case Crime Nos. 1115 of 2014 and 1120 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Dudhara, District Sant Kabir Nagar. He had not been arrested. Counsel submitted that a proved Section 135 offence could not attract a sentence exceeding seven years, so arrest should not be mechanical, and that the offence was compoundable under the electricity law.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest safeguards and compounding

HOLDING

An FIR registered under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not been made, a mere apprehension of illegal arrest is not a ground to quash; if arrest is to be effectuated and the offence will not entail a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A CrPC, with any breach remediable before the Magistrate. If the offence is compoundable, the petitioner may seek that remedy under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Quash of the s.135 FIR was refused because it disclosed a cognizable offence; the Court directed CrPC 41(1)(b)/41-A compliance if arrest were made (sentence not exceeding seven years) and pointed the petitioner to compounding under the Electricity Supply Code, 2005 if the offence is compoundable. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED SECTION 135 OFFENCE IS COMPOUNDABLE ON THESE FACTS

The Court only said that if the offence is compoundable, the petitioner may seek the Supply Code, 2005 remedy. ¶ 1

NOT DECIDED — MERITS OF THE THEFT ALLEGATION AND LEGALITY OF ANY FUTURE ARREST

Arrest had not been made; any breach of Sections 41(1)(b)/41-A CrPC was left to a complaint before the Magistrate. ¶ 1